

YOUR MISSISSIPPI NON-CONVICTION EXPUNGEMENT PACKET

Prepared for Bartholomew-Emmanuel de la Cruz-Featherstone

This page is a guide to the packet. It is not a filing and it is not given to the court.

WHAT THIS PACKET IS

This is a five-part self-help packet for the Mississippi non-conviction pathway in Miss. Code Ann. Section 99-19-71(4). It is prepared from the facts you verified against your records.

PACKET CONTENTS

The pages are delivered in this order.

1. Your Mississippi Non-Conviction Expungement Packet - this cover and contents page, which is not filed with the court.
2. Petition for Expungement of Criminal Record Under Miss. Code Ann. Sec. 99-19-71(4) - the petition you file, quoting Sec. 99-19-71(4) and pleading the one statutory category your record shows.
3. Proposed Order of Expungement - the order you tender with the petition for the judicial officer to consider; the Court alone completes, signs and enters it.
4. Certificate of Service - your record that a copy went to the prosecuting authority, completed only when the copy actually goes out.
5. Exhibit Checklist - the checklist of what you attach - the certified disposition in every case, the indictment only where one exists; the checklist itself is not an attachment.
6. Filing Instructions - what you do, in order, what the order does once entered, and when to stop and get help instead of filing.

The packet specification for this route groups the Certificate of Service and the Exhibit Checklist as one document, which is why it describes a five-part packet where six items are listed above.

RECORDS TO HAVE BESIDE YOU

Have these in front of you before you write anything on these pages, and copy from them rather than from memory:

- the certified copy of the disposition or sentencing order showing how the case ended;
- the docket sheet for the case, whose exact wording you copy;
- the indictment, only where a grand jury actually returned one;
- your own Mississippi criminal history record, so you see every case before you file.

With those beside you, each of these must be true before the packet is ready to file:

- Compare the court, filing location, cause number, and your legal name against the certified disposition and docket sheet.
- Confirm an actual arrest and release, then copy the exact charge, citation, classification, dates, arrest name, aliases, agency identifier, and disposition wording from the records rather than memory.

- Insert the participant-supplied certified disposition as Exhibit A and docket sheet as Exhibit B; the generated assembly checklist is not an attachment.
- Do not sign in advance. Sign the Petition and Verification in the physical presence of a notary after taking an oath or affirmation, and have the notary complete the certificate and official stamp.
- Use the court-approved MCIC identifier channel and remove the confidential addendum from participant and service copies.
- Confirm the prosecuting office, current service address, timing, and any approval-as-to-form practice with the court of origin.
- Ask the court of origin about the filing method, fee or waiver, and number of copies.
- Leave signature and service-time fields blank until you perform those acts, and leave prosecutor and court fields for those officials.
- Stop and get legal help if the disposition, venue, related pending matter, prosecutor treatment, or immigration effect is unclear.

SIGNING AND NOTARIZATION

DO NOT SIGN THE PETITION IN ADVANCE. You must sign the Petition and its Verification in the physical presence of a notary public. Bring satisfactory identification. The notary must administer an oath or affirmation, witness the signature, complete the notarial certificate, and affix the official notary stamp. The packet is not filing-ready until those steps are complete.

That paragraph is printed here word for word from the packet specification this route binds, which is the record that governs what this page must carry. The composed petition in this packet carries a simple truth statement and no separate verification or notarial block, because the legal-design intake record for this track records notarization as unresolved. The two records disagree on their face; this packet does not settle which of them governs, and the point is recorded as an open counsel question. Until it is settled, treat the paragraph above as the safer course, and ask the records office of the court that heard the case whether that court requires a verified or notarized petition. The filing instructions in this packet name the same office for the same question.

IMPORTANT LIMITS

LegalEase does not file this packet and does not guarantee relief. Before filing, confirm the filing method, local form preference, fee or waiver treatment, copy count, and service practice with the records office of the court that handled the case. Stop and get legal help when a record is ambiguous or a stopping condition in the instructions applies.

Route:

obligation:track-pathway:MS:ms-nonconv:non-conviction-expungement-for-dismissal-no-disposition-or-acquittal

PETITION FOR EXPUNGEMENT OF CRIMINAL RECORD UNDER MISS. CODE ANN. SEC.
99-19-71(4)

IN THE COURT OF , MISSISSIPPI
(WRITE THE COURT IN WHICH THE CASE WAS PENDING - JUSTICE, COUNTY, CIRCUIT OR
MUNICIPAL - AND ITS COUNTY, OR FOR A MUNICIPAL COURT ITS CITY)

STATE OF MISSISSIPPI

v.

Bartholomew-Emmanuel de la Cruz-Featherstone, PETITIONER

Cause No.

(copy the cause number from the court record; where the court assigns a new number for the
expungement it is supplied at filing)

PETITION FOR EXPUNGEMENT OF CRIMINAL RECORD UNDER MISS. CODE ANN. Sec.
99-19-71(4)

The petitioner, Bartholomew-Emmanuel de la Cruz-Featherstone, petitions this Court for an order
expunging the record of the case described below, and states:

FIRST. Miss. Code Ann. Sec. 99-19-71(4) provides: 'Upon petition therefor, a justice, county, circuit or
municipal court shall expunge the record of any case in which an arrest was made, the person arrested was
released and the case was dismissed or the charges were dropped or there was no disposition of such case,
or the person was found not guilty at trial.'

SECOND. The identifying facts of the case, each taken from the court record:

Petitioner's date of birth: 1961-12-31

What the petitioner was charged with, worded as the court record words it, with the Mississippi Code
section where the record states one:

.....
.....

Date of the offence alleged:

.....

Date of arrest or citation:

.....

Agency that made the arrest or issued the citation:

.....

That agency's own case or citation number, where the record states one:

.....
Date on which the case ended, from the record:
.....

THIRD. The case ended without a conviction, in the statutory category marked below. Mark EXACTLY ONE, and only the one your own court paperwork shows; nothing is marked for you, and an entry such as 'passed to the file' or 'retired to the file' is a reason to stop and get advice rather than to mark any box:

- ☐ An arrest was made, the petitioner was released, and the case was dismissed.
- ☐ The charges were dropped.
- ☐ There was no disposition of the case.
- ☐ The petitioner was found not guilty at trial.

FOURTH. Where a grand jury returned an indictment in the case, and only then, its date and court are stated here from the record (leave blank where the case was never indicted; most are not):
.....

FIFTH. Subsection (4) imposes no waiting period, no completion requirement and no first-offender requirement, and none is asserted here. The one-felony-per-lifetime cap of subsection (2)(a) applies to felony conviction expungement only and is not spent by this petition.

SIXTH. The petitioner therefore requests that the Court enter an order expunging the record of the case described above, as Sec. 99-19-71(4) directs, with a nonpublic record retained by the Mississippi Criminal Information Center solely for the purpose Sec. 99-19-71(3) states.

I declare that the facts stated in this petition are true and correct.

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Bartholomew-Emmanuel de la Cruz-Featherstone

MAILING ADDRESS: 15522 Lower Delta Bottomland Access Road, Building 7, Unit 41-B, Greenwood, Mississippi 38930-6604

TELEPHONE: (769) 555-0102 ext. 8846

EMAIL: bartholomew.emmanuel.de.la.cruz.featherstone@longmailexample.org

Route:

obligation:track-pathway:MS:ms-nonconv:non-conviction-expungement-for-dismissal-no-disposition-or-acquittal

PROPOSED ORDER OF EXPUNGEMENT

IN THE COURT OF , MISSISSIPPI
(WRITE THE COURT IN WHICH THE CASE WAS PENDING - JUSTICE, COUNTY, CIRCUIT OR
MUNICIPAL - AND ITS COUNTY, OR FOR A MUNICIPAL COURT ITS CITY)

STATE OF MISSISSIPPI

v.

Bartholomew-Emmanuel de la Cruz-Featherstone, PETITIONER

Cause No.

(copy the cause number from the court record; where the court assigns a new number for the
expungement it is supplied at filing)

PROPOSED ORDER OF EXPUNGEMENT

(This order is tendered with the petition for the Court's consideration, which is Mississippi practice. Every
finding below is a proposal for the Court to make; nothing in it is an assertion of fact by the preparer, and
nothing on this page is completed for the Court.)

THIS CAUSE came before the Court on the petition of Bartholomew-Emmanuel de la Cruz-Featherstone
for expungement of the record of a case under Miss. Code Ann. Sec. 99-19-71(4), and the Court, having
considered the petition, would find that the case falls within Sec. 99-19-71(4): an arrest was made, the
person arrested was released, and the case was dismissed or the charges were dropped or there was no
disposition of the case, or the person was found not guilty at trial.

IT IS THEREFORE ORDERED that the record of the case described in the petition is expunged, and that
every person and agency keeping an official record of the arrest or the case shall expunge it, including the
following, each named by the petitioner from the case record:

Agency that made the arrest or issued the citation, as the order must direct it:

.....

Sheriff's department of the county, where its records carry the case:

.....

Any other person or agency keeping an official record of the case:

.....

PROVIDED that the existing records of fingerprints are excepted from this order, as Miss. Code Ann. Sec.
99-19-71 provides; that the Mississippi Criminal Information Center shall retain a nonpublic record solely
for the purpose of determining, in subsequent proceedings, whether the person is a first offender; and that
upon entry of this order the petitioner is restored, in contemplation of law, to the status the petitioner
occupied before the arrest, and shall not be held thereafter guilty of perjury for failure to recite the arrest,
except as Sec. 99-19-71(3) provides for first-offender determinations.

Route:

obligation:track-pathway:MS:ms-nonconv:non-conviction-expungement-for-dismissal-no-disposition-or-acquittal

SO ORDERED.

ENTERED, this the day of,

JUDICIAL OFFICER OF THE COURT

(the Court alone completes, signs and enters this order)

APPROVED AS TO FORM, for the prosecuting authority:

.....

(some districts expect the prosecuting authority to approve the order as to form before it is presented; this block is never completed by the preparer and is never pre-signed)

CERTIFICATE OF SERVICE

IN THE COURT OF , MISSISSIPPI
(WRITE THE COURT IN WHICH THE CASE WAS PENDING - JUSTICE, COUNTY, CIRCUIT OR
MUNICIPAL - AND ITS COUNTY, OR FOR A MUNICIPAL COURT ITS CITY)

STATE OF MISSISSIPPI

v.

Bartholomew-Emmanuel de la Cruz-Featherstone, PETITIONER

Cause No.

(copy the cause number from the court record; where the court assigns a new number for the
expungement it is supplied at filing)

CERTIFICATE OF SERVICE

I, Bartholomew-Emmanuel de la Cruz-Featherstone, certify that a true and correct copy of the Petition for
Expungement of Criminal Record and of the proposed Order of Expungement in this cause was delivered
to the prosecuting authority named below, contemporaneously with the filing of the petition:

Prosecuting authority served - for a circuit court case the district attorney for the circuit district, for a
county, justice or municipal court case the county or municipal prosecuting attorney (write the office as
the court record names it):

.....

Mailing address at which that office was served:

.....

.....

Manner of delivery (mark the one used):

☐ By United States mail

☐ By hand delivery

DATE OF DELIVERY OF THE COPY

SIGNATURE OF PETITIONER

(This page is completed and signed by the petitioner when the copy actually goes out. A date or a
signature written before the copy goes out would be false.)

Route:

obligation:track-pathway:MS:ms-nonconv:non-conviction-expungement-for-dismissal-no-disposition-or-
acquittal

EXHIBIT CHECKLIST

Prepared for: Bartholomew-Emmanuel de la Cruz-Featherstone

Attach these exhibits to the petition. Each is named here and obtained by you; nothing is obtained, inspected or authenticated for you.

EXHIBIT A - IN EVERY CASE. A certified copy of the disposition or sentencing order showing how the case ended, from the records office of the court that heard the case. Mississippi has no central portal and each court holds its own file, so identify the right court first.

EXHIBIT B - ONLY WHERE THE CASE WAS INDICTED. A copy of the indictment, from the circuit records office of the county. Attach it only if a grand jury actually returned an indictment; most cases are never indicted, and the petition pleads an indictment only where one exists.

ADVISABLE:

- The docket sheet for the case, from the records office of the court that heard the case. It shows exactly how the case ended, and its wording matters: 'passed to the file' or 'retired to the file' is a reason to stop and get advice.
- Your own Mississippi criminal history record, from the Mississippi Criminal Information Center, so you can see every case on your record before you file.

Route:

obligation:track-pathway:MS:ms-nonconv:non-conviction-expungement-for-dismissal-no-disposition-or-acquittal

FILING INSTRUCTIONS

This packet is prepared for expunging the record of a Mississippi case that did not end in a conviction, under Miss. Code Ann. Sec. 99-19-71(4).

Prepared for: Bartholomew-Emmanuel de la Cruz-Featherstone

WHAT YOU DO, IN ORDER

STEP ONE. Identify the correct court and county first. Mississippi has four trial court levels - justice, county, circuit and municipal - and the petition goes to the court in which the case was pending.

STEP TWO. Ask that court's records office for the case file, the docket sheet, and a certified copy of the order showing how the case ended. Copy the docket wording exactly; do not paraphrase it.

STEP THREE. Call that records office before filing and ask whether that court has its own preferred petition or order form or any additional requirement. Mississippi has no statewide form and practice varies by county and circuit district.

STEP FOUR. Fill in every dotted blank this packet's participant instructions list, from the records, and mark exactly one statutory disposition category - only the one your paperwork shows.

STEP FIVE. Sign and date the petition yourself.

STEP SIX. File the petition, with the proposed order and the certificate of service, with the court in which the case was pending, and confirm the filing fee first. No fee amount is published in this packet: whether Sec. 99-19-72's fee reaches a subsection (4) petition at all is a recorded open question - there is no conviction to expunge - and county practice differs, so ask the court's records office for the amount, and for any pauper's-affidavit route if you cannot pay.

STEP SEVEN. Deliver a copy of the petition and the proposed order to the prosecuting authority contemporaneously with filing - for a municipal court case the city prosecutor, not the district attorney - and complete the certificate of service when the copy actually goes out. The ten days' written notice in Sec. 99-19-71(2)(b) belongs to the felony conviction subsection and is not imported here, but some districts expect notice and prosecutor approval as local practice.

STEP EIGHT. Expect that some districts want the district attorney to approve the order as to form before the judicial officer signs. That is a negotiation this packet does not conduct for you.

STEP NINE. After the order issues, obtain certified copies and deliver them to every agency named in the order.

WHAT THE ORDER DOES, FROM THE RECORD

- Relief under subsection (4) is mandatory on the statute's own words - 'shall expunge' - once the case falls in a statutory category.
- Fingerprint records are excepted from expungement.
- The Mississippi Criminal Information Center keeps a nonpublic record solely for first-offender determinations in subsequent proceedings.
- An employer may still ask whether an order of expunction has been entered.
- This petition does not spend the one-felony-per-lifetime cap, which belongs to felony conviction expungement under subsection (2)(a).

WHEN TO STOP AND GET HELP INSTEAD OF FILING

Stop, and take this packet to a lawyer or a legal-aid office, if any of these is true:

- the disposition is ambiguous on the docket - particularly 'passed to the file', 'retired to the file', or a remand;
- the case moved between courts and it is unclear where it was pending;
- this was a nonadjudication, a pretrial intervention programme, or an intervention or drug court, which end differently and route differently;
- a charge arising from the same events is still pending;
- anyone charged with you has a case that is still open;
- the district attorney declines to approve the order as to form;
- you are not a United States citizen - a non-conviction disposition can still carry immigration consequences.

WHAT THIS PACKET DOES NOT TELL YOU

- The filing fee amount, and whether Sec. 99-19-72's fee reaches a subsection (4) petition in this court. The records office of the court that heard the case is the authority that can answer both.
- Whether your court requires verification or notarization of the petition. Neither archived model is verified or notarized and the question is unresolved, so the petition carries a simple truth statement; the same office can say whether that court expects more.
- Your court's own preferred forms or local requirements, which vary by county and district. Ask before you file.

WHAT THIS PACKET IS NOT

This is a prepared set of composed pleadings and process pages. Mississippi publishes no statewide expungement form, which is why these pages are composed. It is not legal advice, it is not filed for you, and it does not decide the classification of an ambiguous docket entry.

Route:

obligation:track-pathway:MS:ms-nonconv:non-conviction-expungement-for-dismissal-no-disposition-or-acquittal